SCHEME OF AMALGAMATION

OF

GODREJ HOUSING PROJECTS PRIVATE LIMITED

('GHPPL' OR 'THE TRANSFEROR COMPANY')

WITH

GODREJ PROPERTIES LIMITED

("GPL" OR "THE TRANSFEREE COMPANY" OR "THE COMPANY")

AND

THEIR RESPECTIVE SHAREHOLDERS

UNDER SECTIONS 230 TO 232 OF THE COMPANIES ACT, 2013 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013

(A) PREAMBLE

This Scheme of Amalgamation is presented under Sections 230 to 232 of the Companies Act, 2013 and other applicable provisions, if any, of the Companies Act, 2013, as may be applicable, for amalgamation of Godrej Housing Projects Private Limited ('GHPPL' or 'the Transferor Company') with Godrej Properties Limited ('GPL' or 'the Transferee Company') and their respective shareholders ('the Scheme'). This Scheme also provides for various other matters consequential or otherwise integrally connected therewith.

(B) BACKGROUND OF THE COMPANIES

i. The Transferor Company is a private company engaged primarily in the business of real estate construction, development and other activities. It is an indirect wholly owned subsidiary of the Transferee Company.

ii. The Transferee Company is a listed company primarily engaged in the business of real estate construction, development and other related activities.

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

The equity shares of the Transferee Company are listed on BSE and NSE. Further, the Rated, Listed, Unsecured, Redeemable, Non-Convertible Debentures ('NCDs') of the Transferee Company are listed on BSE.

(C) RATIONALE FOR THE SCHEME

The Transferee Company is a well-established company engaged in the business of real estate development.

The amalgamation of the Transferor Company with the Transferee Company would have the following benefits:

- Consolidation of real estate business. There are several commonalities and synergistic linkages, and the consolidation of real estate business will result in operational efficiency;
- Ensuring a streamlined group structure by reducing the number of legal entities in the group and reducing the multiplicity of legal and regulatory compliances required;
- Pooling of the technical resources, personnel, capabilities, skills and expertise leading to optimum use of infrastructure, cost reduction and efficiencies, reduction of administrative and operational costs;
- Administrative and operational convenience, elimination of duplication of communication and co-ordination efforts;
- Rationalizing costs by eliminating multiple record keeping and administrative functions; and
- Reducing time and efforts for consolidation of financials at the group level

(D) PARTS OF THE SCHEME:

This Scheme is divided into the following parts:

PART I Deals with Definitions, Interpretation and Share Capital;

PART II Deals with the amalgamation of Godrej Housing Projects Private Limited with Godrej Properties Limited;

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

PART III Deals with the general terms and conditions applicable to the Scheme

PART I

DEFINITIONS, INTERPRETATION AND SHARE CAPITAL

1 DEFINITIONS

In this Scheme of Amalgamation, unless inconsistent with the subject or context, the following expressions shall have the meaning respectively assigned against them:

1.1 **"Act" or "the Act"** means the Companies Act, 2013 and the rules and regulations made thereunder, as the case may be, and shall include any statutory modifications, amendments or re-enactment thereof for the time being in force;

1.2 **"Appointed Date"** means 4th August 2026.

1.3 **"Appropriate Authority"** means any applicable central, state or local government, legislative body, regulatory, administrative or statutory authority, agency or commission or department or public or judicial body or authority, including, but not limited to the Securities and Exchange Board of India, the Stock Exchanges, the Regional Director, the Ministry of Corporate Affairs, the Registrar of Companies and the National Company Law Tribunal and Real Estate Regulatory Authority established under Real Estate (Regulation and Development) Act, 2016;

1.4 **"Board of Directors"** or **"Board"** means the Board of Directors of the Transferor Company or of the Transferee Company as the context may require and shall, unless it be repugnant to the context or otherwise, include a duly

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

constituted committee of directors or any person(s) authorized by the Board of Directors or such committee of directors;

1.5 **"Effective Date"** or **"coming into effect of this Scheme"** or **"upon the scheme being effective"** or **"effectiveness of the Scheme"** means the last of the date or dates on which all the conditions and matters referred to in Clause 16 are fulfilled, obtained or waived and the certified copy of the order of the National Company Law Tribunal, Mumbai Bench sanctioning this Scheme of Amalgamation is filed by the Transferor Company and the Transferee Company with the Registrar of Companies, Mumbai;

1.6 **"GHPPL" or "the Transferor Company"** means Godrej Housing Projects Private Limited (Corporate Identification Number: **U68100MH2026PTC474275**), a company incorporated under the Companies Act, 2013 and having its Registered Office at Godrej One, 5th Floor, Pirojshanagar Eastern Express Highway, Vikhroli (East) Mumbai - 400079; GHPPL was incorporated on **August 03, 2026**upon conversion of Godrej Housing Projects LLP, a Limited Liability Partnership into a Company limited by shares under the provisions of the Companies Act, 2013.

1.7 **"GPL" or "the Transferee Company"** means Godrej Properties Limited (CIN: L74120MH1985PLC035308), a company incorporated under the Companies Act, 1956 and having its Registered Office at Godrej One, 5th Floor, Pirojshanagar Eastern Express Highway, Vikhroli (East) Mumbai - 400079;

1.8 **"Income Tax Act"** means the Income Tax Act, 1961 and / or the Indian Income Tax Act, 2025, as may be applicable, including any statutory modifications, re-enactments or amendments thereof, for the time being in force, read with the relevant rules, regulations and/or circulars issued thereunder;

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

1.9 **"NCLT"** means the National Company Law Tribunal, Mumbai Bench, the National Company Law Appellate Tribunal and any other competent authority as constituted and authorized as per the provisions of the Companies Act, 2013 for approving any scheme of arrangement, compromise or reconstruction of companies under provisions of the Companies Act, 2013;

1.10 **"Scheme" or "the Scheme" or "this Scheme"** means this Scheme of Amalgamation in its present form or with any modification(s) made under Clause 14 of this Scheme as approved or directed by the NCLT;

1.11 **"SEBI"** means the Securities and Exchange Board of India;

1.12 **"SEBI (Listing Obligations and Disclosure Requirements) Regulations 2015"** means the regulations issued by SEBI for adherence by a listed company hereinafter referred as 'Listing Regulations' as amended from time to time;

1.13 **"Stock Exchange"** means BSE Limited ('BSE') and the National Stock Exchange of India Limited ('NSE');

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act and other applicable laws, rules, regulations, bye laws, as the case may be, including any statutory modification or re-enactment thereof from time to time.

2 DATE OF TAKING EFFECT AND OPERATIVE DATE

2.1 The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the NCLT or made under Clause 14 of this Scheme shall be effective from the Appointed Date but shall become operative from the Effective Date.

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

3 SHARE CAPITAL

3.1 The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferor Company as on 4th August 2026 is as under:

Particulars	Amount (in INR)
Authorized Share Capital	
10,000 equity shares of INR 10/- each	1,00,000
Total	**1,00,000**
Issued, Subscribed and Paid-up Share Capital	
10,000 equity shares of INR 10/- each	1,00,000
Total	**1,00,000**

Subsequent to 4th August 2026, there has been no change in the Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferor Company.

The Transferee Company holds 95% of the equity shares of the Transferor Company and the remaining 5% of the equity shares of the Transferor Company are held by Godrej Projects Development Limited (GPDL), a wholly owned subsidiary of the Transferee Company. Accordingly, the Transferor Company is an indirect wholly owned subsidiary of the Transferee Company.

3.2 The Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferee Company as on 30th June, 2026 is as under:

Particulars	Amount (in INR)
Authorized Share Capital	
1,33,80,00,000 Equity Shares of INR 5/- each	6,69,00,00,000

GODREJ PROPERTIES LIMITED

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GODREJ HOUSING PROJECTS PRIVATE LIMITED

Total	**6,69,00,00,000**
Issued, Subscribed and Paid-up Share Capital	
30,12,25,962 Equity Shares of INR 5/- each, fully paid up	150,61,29,810
Total	150,61,29,810

Subsequent to 30th June, 2026, there has been no change in the Authorized, Issued, Subscribed and Paid-up Share Capital of the Transferee Company.

The equity shares of the Transferee Company are currently listed on BSE and NSE. The Rated, Listed, Unsecured, Redeemable, Non-Convertible Debentures ('NCDs') of the Transferee Company are listed on BSE.

PART II

AMALGAMATION OF TRANSFEROR COMPANY WITH TRANSFEREE COMPANY

4 TRANSFER AND VESTING OF UNDERTAKING

4.1 Subject to the provisions of this Scheme as specified hereinafter and with effect from the Appointed Date, the entire business and the undertaking of the Transferor Company including all its properties and assets, (whether movable or immovable, tangible or intangible including development rights), leasehold assets and other properties, real, in possession or reversion, present and contingent assets (whether tangible or intangible) of whatsoever nature, all the receivables, advances, deposits etc. including, without limitation, all the movables and immovable properties and assets of the Transferor Company comprising amongst others business licenses, permits, authorizations, if any, rights and benefits of all agreements and all other interests, rights and powers of every kind, nature and description whatsoever, privileges, liberties, easements, advantages, benefits and approvals, advance and other taxes paid

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

to the authorities, copyrights, lease, tenancy rights, statutory permissions, consents and registrations or approvals obtained from any authorities including but not limited to approval from any Real Estate Regulatory Authority, approval from any Industrial Development Corporation, Chief Fire Officer, Executive Engineer Traffic and Coordination, Environment Clearance Certificate, Title Clearance Certificate issued by any Competent Authority, all rights and /or titles and /or interest in properties by virtue of any court decree or order, all records, files, papers, contracts, Intimation Of Disapproval (IOD), Approved Building Plan and any amendments thereto, Commencement Certificate, Building Completion Certificate, Occupation Certificate, Development Right Certificate (DRC), No Objection Certificate from any authorities, including the Municipal authorities, competent authority under the Competition Act, 2002, as amended, Competent authority under the Urban Land Ceiling Act,1976, lease, tenancy rights, letter of intents, permissions, benefits under income tax law and indirect tax law (including but not limited to credit for advance tax, tax deducted at source, unutilized deposits or credits, minimum alternate tax, tax refunds, credit for service tax, sales tax / value added tax / goods and service tax and / or any other statues, incentives under indirect taxes, if any) and all other rights, title, interest, including Development Agreements, Conveyances, Agreement for Sale etc, consent, approvals or powers of every kind and description, agreements shall, pursuant to the order of NCLT and pursuant to provisions of Sections 230 to 232 of the Act and other applicable provisions of the Act and without further act, instrument or deed, but subject to the charges affecting the same be vested and/or deemed to be vested in Transferee Company on a going concern basis so as to become the assets of the Transferee Company with all rights, title, interest or obligations of the Transferor Company therein.

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

4.2 In respect of all the movable assets of the Transferor Company and the assets which are otherwise capable of transfer by physical delivery or endorsement and delivery, including cash on hand, shall be so transferred to the Transferee Company and deemed to have been physically handed over by physical delivery or by endorsement and delivery, as the case may be, to the Transferee Company to the end and intent that the property and benefit therein passes to the Transferee Company with effect from the Appointed Date pursuant to such delivery.

4.3 In respect of any movable assets of the Transferor Company other than those mentioned in Clause 4.1 and 4.2 above, including actionable claims, deposits including deposits paid in relation to outstanding litigations, sundry debtors, outstanding loans, advances recoverable in cash or kind or value to be received from other authorities and bodies and customers, shall, without any further act, instrument or deed, be transferred to and vested into as the property of the Transferee Company. The Transferor Company may, if so required by the Transferee Company, issue notices in such form as the Transferee Company may deem fit and proper stating that pursuant to the NCLT having sanctioned this Scheme between the Transferor Company and the Transferee Company under Sections 230 to 232 of the Act, the relevant debt, loan, advance or other asset, to be repaid to or made good to or held on account of the Transferee Company, as the person entitled thereto, to the end and intent that the right of the Transferor Company to recover or realize the same stands transferred to the Transferee Company and that appropriate entries should be passed in their respective books to record the aforesaid changes.

4.4 In respect of such of the assets and properties of the Transferor Company which are immovable in nature, whether or not recorded in the books of the

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

Transferor Company, including rights, interest and easements in relation thereto, the same shall stand transferred to and be vested in the Transferee Company with effect from the Appointed Date, without any act or deed or conveyance being required to be done or executed by the Transferor Company and / or the Transferee Company. The Transferee Company shall be entitled to exercise all rights and privileges attached to such immovable properties and shall be liable to pay the ground rent and taxes and fulfil all obligations in relation to or applicable to such immovable assets and properties.

4.5 For the avoidance of doubt and without prejudice to the generality of Clause 4.1 and 4.4 above, it is clarified that, with respect to the immovable properties of Transferor Company in the nature of land and buildings, the Transferor Company and/ or the Transferee Company shall register the true copy of the orders of the NCLT approving the Scheme with the offices of the relevant Sub-registrar of Assurances or similar registering authority having jurisdiction over the location of such immovable property and shall also execute and register, as required, such other documents which may be necessary in this regard. It is clarified that any document executed pursuant to Clause 4.4 above, will be for the limited purpose of meeting regulatory requirements and shall not be deemed to be a document under which the transfer of any asset of the Transferor Company takes place and all assets of the Transferor Company shall be transferred solely pursuant to and in terms of this Scheme and the order of the Tribunal sanctioning this Scheme;

4.6 With effect from the Appointed Date, any statutory licenses, permissions, approvals, all allocations by the government shall stand vested in or transferred to the Transferee Company without any further act or deed and shall be appropriately mutated by the statutory authorities concerned in favor of the Transferee Company. The benefit of all statutory and regulatory permissions, registrations or other licenses and consents shall vest in and shall be in full force and effect in favor of the Transferee Company and may be enforced as

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

fully and effectually as if instead of the Transferor Company, the Transferee Company had been the party thereto or the beneficiary or oblige thereof pursuant to this Scheme.

4.7 With effect from the Appointed Date, all debts, liabilities, contingent liabilities, duties and obligations of the Transferor Company, whether provided for or not in the books of accounts of the Transferor Company shall, pursuant to the Order of the NCLT or such other competent authority as may be applicable under Section 230 to 232 and other applicable provisions of the Act without any further act or deed, be transferred or deemed to be transferred to and vested in the Transferee Company, so as to become as from the Appointed Date the debts, liabilities, contingent liabilities, duties and obligations of the Transferee Company on the same terms and conditions as were applicable to the Transferor Company.

4.8 The transfer of assets and liabilities pursuant to Clause 4.1 to Clause 4.6 above and the continuance of proceedings by the Transferee Company pursuant to Clause 8 shall not affect any transaction or proceedings already concluded by the Transferor Company on or before the Appointed Date or after the Appointed Date till the Effective Date to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Company in regard thereto, as if done and executed by the Transferee Company on behalf of itself.

4.9 Where any of the debt, liabilities, duties and obligations of the Transferor Company as on the Appointed Date, deemed to be transferred to the Transferee Company have been discharged by the Transferor Company, as the case may be, after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on account of the Transferee Company.

GODREJ PROPERTIES LIMITED

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GODREJ HOUSING PROJECTS PRIVATE LIMITED

4.10 All the existing securities, mortgages, charges, encumbrances or liens, if any, as on the Appointed Date and those created by the Transferor Company over the assets of the Transferor Company after the Appointed Date and subsisting as on the Effective Date shall, after the Effective Date, continue to relate and attach to such assets or any part thereof to which they are related or attached prior to the Effective Date. Such securities, mortgages, charges, encumbrances or liens shall not relate or attach or extend to any of the other assets of the Transferee Company.

Provided always that the Scheme shall not operate to enlarge the security for any loan, deposit or facility availed of by the Transferor Company, if any, and the Transferee Company shall not be obliged to create any further or additional security thereof after the Effective Date or otherwise.

4.11 Without prejudice to the provisions of the foregoing Clauses, the Transferor Company and the Transferee Company shall execute all such instruments or documents or do all the acts and deeds as may be required, including the filing of necessary particulars and/or modification(s) of charge, with the Registrar of Companies, Mumbai, if any, to give formal effect to the above provisions, if required.

4.12 With effect from the Effective Date until such times the names of the bank accounts of the Transferor Company would be replaced with that of the Transferee Company, the Transferee Company shall be entitled to operate the bank accounts of the Transferor Company in the name of the respective Transferor Company in so far as may be necessary. All cheques and other negotiable instruments, payment orders received or presented for encashment which are in the name of the Transferor Company after the Effective Date shall

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company, if presented by the Transferee Company. The Transferee Company shall be allowed to maintain bank accounts in the name of Transferor Company for such time as may be determined to be necessary by the Transferee Company for presentation and deposition of cheques and pay orders that have been issued in the name of the Transferor Company.

4.13 This Scheme is in compliance with the provisions relating to "Amalgamation" as specified under Section 2(6) and other relevant provisions of the Income Tax Act.

4.14 All tax liabilities / refunds / credits / claims relating thereto under the Income Tax Act, Customs Act, 1962, Central Excise Act, 1944, Central Goods and Services Tax Act, 2017, State Goods and Services Tax Act, 2017, Integrated Goods and Services Tax Act, 2017, Union Territory Goods and Services Tax Act, 2017, state sales tax laws, Central Sales Tax Act, 1956, service tax, or other applicable laws / regulations dealing with taxes / duties / levies (hereinafter in this Clause referred to as "Tax Laws") of the Transferor Company to the extent not provided for or covered by tax provision in the financial statements made as on the date immediately preceding the Appointed Date shall be treated as liabilities / refunds / credits / claims of the Transferee Company from the Appointed Date and shall be transferred to the Transferee Company. Any surplus in the provision for taxation/ duties/ levies account including advance tax and tax deducted at source, credit for minimum alternative tax/ service tax, goods and service tax or such other credits as on the date immediately preceding the Appointed Date will also be transferred to and become the advance tax/other tax of the Transferee Company.

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

4.15 Without prejudice to the generality of the above, all benefits, credits, refunds, exemptions, incentives or concessions under Tax Laws as may be applicable to which the Transferor Company is entitled to in terms of the applicable Tax Laws of the union and state governments in India, shall be available to and vest in the Transferee Company.

4.16 The Transferee Company shall be entitled to file / revise its income tax returns, service tax returns, value added tax returns, central sales tax returns, goods and service tax returns, tax deducted at source certificates, tax deducted at source returns and other statutory returns and filings, if required under the Tax Laws, and shall have the right to claim or adjust refunds, advance tax credits, credit for minimum alternate tax / tax deducted at source / foreign taxes withheld/ paid, input tax credits, of the Transferor Company if any, as may be required consequent to implementation of this Scheme.

4.17 The Transferee Company shall be entitled to avail various benefits under schemes and policies of the Government, if any that were being availed or were available to the Transferor Company. It is declared that pursuant to this Scheme, all the benefits under such incentive schemes and policies shall stand transferred and vested to the Transferee Company.

5 CONSIDERATION

As the Transferor Company is an indirect wholly owned subsidiary of the Transferee Company, no shares of the Transferee Company shall be allotted towards discharge of consideration or in lieu or exchange of the equity shareholding in the Transferor Company. The provisions of Section 19 of the Act prohibit a company from holding any shares in its holding company and also prohibit a holding company from allotting its shares to any of its subsidiary companies. Therefore, upon the Scheme becoming effective, no

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

shares of the Transferee Company shall be allotted in lieu or exchange of the holding of GPDL (i.e. a wholly owned subsidiary of the Transferee Company) in the Transferor Company and the share capital of the Transferor Company, as on Effective date, held by the Transferee Company and GPDL shall stand cancelled. Upon the coming into effect of this Scheme, the share certificates, if any, and/or the shares in electronic form representing the shares in the Transferor Company shall be deemed to be cancelled without any further act or deed for cancellation thereof and shall cease to be in existence accordingly.

6 ACCOUNTING TREATMENT IN THE BOOKS OF THE TRANSFEREE COMPANY

Upon this Scheme becoming effective, with effect from the Appointed Date, the Transferee Company shall account for the amalgamation of the Transferor Company in accordance with "Pooling of Interest Method" of accounting as laid down in Appendix C of Indian Accounting Standard (Ind AS) 103 'Business Combinations of entities under common control' notified under section 133 of the Companies Act, 2013 under the Companies (Indian Accounting Standards) Rules, 2015, as may be amended from time to time in the books of accounts such that:

6.1 The Transferee Company shall record all the assets and liabilities, if any, of the Transferor Company vested in it pursuant to the Scheme, at the carrying values as appearing in the consolidated financial statements of the Transferee Company immediately prior to the scheme becoming effective as required by Appendix C of Indian Accounting Standard (Ind AS) 103 'Business Combinations';

GODREJ PROPERTIES LIMITED

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GODREJ HOUSING PROJECTS PRIVATE LIMITED

6.2 The identity of the reserves of the Transferor Company shall be preserved and the Transferee Company shall record the reserves of the Transferor Company in the same form and at the carrying values as appearing in consolidated financial statements of the transferee company prior to the scheme being effective as required by Appendix C of Indian Accounting Standard (Ind AS) 103 'Business Combinations';

6.3 The value of investments held by the Transferee Company and GPDL in the Transferor Company shall stand cancelled pursuant to amalgamation;

6.4 Pursuant to the amalgamation of the Transferor Company with the Transferee Company, the Inter-Company balances between the Transferor Company and the Transferee Company shall, stand cancelled and there shall be no further obligation in that behalf.

6.5 The difference, if any arising between the share capital of the transferor company and the amount of investments cancelled by the transferee company shall be recorded as Capital Reserve Account (if credit) of the Transferee Company and presented separately from other capital reserves, or debited to revenue reserves (if debit) and if there are no reserves or inadequate reserves, to an amalgamation deficit reserve (if debit), with disclosure of its nature and purpose in the notes to the financial statements.

6.6 In case of any differences in accounting policy between the Transferor Company and the Transferee Company, the accounting policies followed by the Transferee Company will prevail to ensure that the financial statements of the Transferee Company reflect the financial position on the basis of consistent accounting policy.

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

6.7 Comparative financial information in the financial statements of the Transferee Company shall be restated for the accounting impact of merger, as stated above, as if the merger has occurred from the beginning of the comparative period or from the date of obtaining control, whichever is later.

6.8 Any matter not dealt with in this Clause shall be dealt with in accordance with the Indian Accounting Standards applicable to the Transferee Company.

7 CONDUCT OF BUSINESS TILL THE EFFECTIVE DATE

7.1 With effect from the Appointed Date and up to and including the Effective Date, the Transferor Company shall carry on and be deemed to have been carrying on its business and activities and shall stand possessed of and hold all of the business for and on account of and for the benefit of and in trust for the Transferee Company. Further, all the profits or income accruing or arising to the Transferor Company or expenditure, or losses arising to or incurred by the Transferor Company, with effect from the Appointed Date shall for all purposes and intents be treated and be deemed to be and accrue as the profits or income or expenditure or losses of the Transferee Company, as the case may be.

7.2 With effect from the date of approval of this Scheme by the Board of Directors of the Transferor Company and Transferee Company and up to and including the Effective Date:

(a) The Transferor Company shall carry on its business and activities in the ordinary course of business with reasonable diligence and business prudence and shall not make borrowings or undertake financial commitments either for itself or on behalf of group companies or any third party or sell, transfer, alienate, mortgage, charge, or encumber or otherwise deal with or dispose of its assets, business or undertaking or

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

any part thereof, save and except in the ordinary course of business or with the prior written consent of the Transferee Company.

(b) The Transferee Company shall be entitled to apply to the Central Government and any other Government or statutory authorities/agencies/body concerned as are necessary under any law for such consents, approvals, licenses, registrations and sanctions which the Transferee Company may require to carry on the business of the Transferor Company.

(c) The Transferor Company shall not declare or pay any dividends, whether interim or final, to its respective equity shareholders in respect of the accounting period prior to the Effective Date, except with the prior approval of the Board of Directors of Transferee Company.

8 LEGAL PROCEEDINGS

8.1 If any suit, appeal or other proceeding of whatever nature by or against the Transferor Company (including all such suit, appeal or other proceedings by or against the erstwhile Godrej Housing Projects LLP) is pending, the same shall not abate or be discontinued or in any way be prejudicially affected by reason of or by anything contained in this Scheme, but the said suit, appeal or other proceeding may be continued and enforced by or against the Transferee Company, as the case may be, in the same manner and to the same extent as it would or might have been continued and enforced by or against the Transferor Company as if this Scheme had not been made.

8.2 The Transferee Company undertakes to have all legal or other proceedings initiated by or against the Transferor Company referred to in Clause 8.1 above

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

transferred in its name and to have the same continued, prosecuted and enforced by or against the Transferee Company to the same extent as would or might have been continued and enforced by or against the Transferor Company.

9 STAFF & EMPLOYEES

9.1 Upon this Scheme becoming effective, all employees, if any, of the Transferor Company shall be deemed to have become employees of the Transferee Company with effect from the Appointed Date without any break, discontinuance or interruption in their service and on the basis of continuity of service, and the terms and conditions of their employment with the Transferee Company shall not be less favorable than those applicable to them with reference to the Transferor Company on the date on which the Scheme becomes effective.

9.2 It is expressly provided that, upon the Scheme becoming effective, the Provident Fund, Gratuity Fund, Pension Fund, Superannuation Fund or any other Special Fund or Trusts (hereinafter referred to as Fund or Funds) created or existing for the benefitof the employees of the Transferor Company, if any, shall become trusts/funds of the Transferee Company for all purposes whatsoever in relation to the administration or operation of such Fund or Funds or in relation to obligation to make contributions to the said Fund or Funds in accordance with the provisions thereof as per the terms provided in the respective Trust Deeds, if any, to the end and intent that all rights, duties, powers and obligations of the Transferor Company in relation to such Fund or Funds shall become those of the Transferee Company. It is clarified that the services of the staff and employees of the Transferor Company will be treated as having been continuous for the purpose of the said Fund or Funds.

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

9.3 In relation to the employees of the Transferor Company who are not covered under the Provident Fund Trust of the Transferor Company and for whom the Transferor Company are making contributions to the Government Provident Fund, the Transferee Company shall stand substituted for the Transferor Company for all purposes whatsoever, including those relating to the obligation to make contributions to the said fund in accordance with the provisions of such fund, in respect of such employees.

9.4 In relation to any other fund created or existing for the benefit of the employees of the Transferor Company, the Transferee Company shall stand substituted for all purposes whatsoever, including those relating to the obligation to make contributions to the said funds in accordance with the provisions of such scheme, funds, bye laws, etc. in respect of such employees. It is clarified that save as expressly provided for in this Scheme, the employees of the Transferor Company who become the employees of the Transferee Company by virtue of this Scheme, shall not be entitled to avail of any Schemes and benefits (including employee stock options) that may be applicable and available to any of the other employees of the Transferee Company (including benefits of or under any employee stock option schemes applicable to or covering all or any of the other employees of the Transferee Company), unless otherwise determined by the Transferee Company. The Transferee Company undertakes to continue to abide by any agreement/ settlement, if any, entered into or deemed to have been entered into by the Transferor Company with any employee of the Transferor Company.

GODREJ PROPERTIES LIMITED

GODREJ HOUSING PROJECTS PRIVATE LIMITED

10 CONTRACTS, DEEDS, APPROVALS, EXEMPTIONS, ETC.

10.1 On and from the Appointed Date and subject to the other provisions of this Scheme, all contracts, deeds, bonds, insurance, letters of intent, undertakings, arrangements, policies, agreements and other instruments, if any, of whatsoever nature to which the Transferor Company is a party and subsisting or having effect on the Effective Date, shall be in full force and effect against or in favor of the Transferee Company, as the case may be, and may be enforced by or against the Transferee Company as fully and effectually as if, instead of the Transferor Company, the Transferee Company had been a party thereto.

10.2 The Transferee Company shall, if so required, enter into and/or issue and/or execute deeds, writings or confirmations or enter into any tripartite arrangements, confirmations or novations, to which the Transferor Company will, if necessary, also be a party (if applicable) in order to give formal effect to the provisions of this Scheme, if so required or if necessary. The Transferee Company shall be deemed to be authorized to execute any such deeds, writings or confirmations on behalf of the Transferor Company and to implement or carry out all formalities required on the part of the Transferor Company to give effect to the provisions of this Scheme.

11 SAVING OF CONCLUDED TRANSACTIONS

The transfer of assets, properties and liabilities under Clause 4 above and the continuance of proceedings by or against the Transferor Company under Clause 8 above shall not affect any transaction or proceedings already concluded by the Transferor Company on and after the Appointed Date till the Effective Date to the end and intent that the Transferee Company accepts all acts, deeds and things done and executed by and / or on behalf of the Transferor

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Company as acts, deeds and things done and executed by and / or on behalf of the Transferee Company.

12 DISSOLUTION OF THE TRANSFEROR COMPANY

On the Scheme becoming effective, the Transferor Company shall stand dissolved without being wound-up.

PART III

GENERAL TERMS AND CONDITIONS

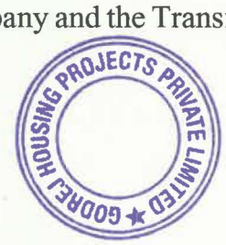
13 APPLICATION

The Transferor Company and the Transferee Company shall make necessary applications before the NCLT for the sanction of this Scheme under Sections 230 to 232 and other applicable provisions of the Act and for seeking orders for dispensing with or convening, holding and/or conducting of the meetings of the respective shareholders and / or creditors.

14 MODIFICATIONS / AMENDMENTS TO THE SCHEME

The Transferor Company and the Transferee Company with approval of their respective Board of Directors may consent, from time to time, on behalf of all persons concerned, to any modifications / amendments or additions / deletions to the Scheme which may otherwise be considered necessary, desirable or appropriate by the said Board of Directors to resolve all doubts or difficulties that may arise for carrying out this Scheme and to do and execute all acts, deeds, matters and things necessary for bringing this Scheme into effect or agree to any terms and / or conditions or limitations that the NCLT or any other authorities under law may deem fit to approve of, to direct and / or impose. The aforesaid powers of the Transferor Company and the Transferee Company





to give effect to the modification / amendments to the Scheme may be exercised by their respective Board of Directors or any person authorized in that behalf by the concerned Board of Directors subject to approval of the NCLT or any other authorities under the applicable law to such modification / amendments to the Scheme.

15 VALIDITY OF THE EXISTING RESOLUTIONS, ETC.

Upon the coming into effect of the Scheme, the resolutions of the Transferor Company as are considered necessary by the Board of Directors of the Transferee Company which are validly subsisting, be considered as resolutions of the Transferee Company. If any such resolutions have any monetary limits approved under the provisions of the Act or any other applicable statutory provisions, then the said limits, as are considered necessary by the Board of Directors of the Transferee Company, shall be added to the limits, if any under the like resolutions passed by the Transferee Company.

16 CONDITIONALITY OF THE SCHEME

This Scheme is conditional upon and subject to the following:

16.1 The Scheme being approved by the requisite majorities in number and value of such classes of persons including the respective shareholders and/or creditors, if required, of the Transferor Company and the Transferee Company, as may be directed by the NCLT or any other Appropriate Authority as may be applicable;

16.2 The requisite sanctions and approvals of any Appropriate Authority, as may be required by law, if any, in respect of the Scheme being obtained;

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16.3 The Scheme being sanctioned by the NCLT under Sections 230 to 232 and other applicable provisions of the Act; and

16.4 Certified copy of the Order of the NCLT sanctioning the Scheme, being filed with the Registrar of Companies, Mumbai by the Transferor Company and the Transferee Company.

17 WITHDRAWAL OF THIS SCHEME

This Scheme may be withdrawn from the Tribunal by the Parties by mutual written consent of the Parties, acting through their respective Boards.

18 EFFECT OF NON-RECEIPT OF APPROVALS

18.1 In the event of any of the said sanctions and approvals referred to in the preceding Clause not being obtained and/ or the Scheme not being sanctioned by the NCLT or such other competent authority and / or the order not being passed as aforesaid before 31st December 2027 or within such further period or periods as may be agreed upon between the Transferor Company and the Transferee Company by their respective Board of Directors (and which the Board of Directors of the Company are hereby empowered and authorized to agree to and extend the Scheme from time to time without any limitation), the Scheme shall become null and void, and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any right, liability, or obligations which have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law and each party shall bear and pay its respective costs, charges and expenses in connection with the Scheme unless otherwise mutually agreed.

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18.2 Save and except as mentioned in Clause 18.1 above, in the event of this Scheme failing to take effect or it becoming null and void, no rights and liabilities of whatsoever nature shall accrue to or be incurred inter-se to or by the parties to the Scheme or any of them.

19 COSTS, CHARGES & EXPENSES

All costs, charges, taxes including duties, levies and all other expenses, if any (save as expressly otherwise agreed) arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto shall be borne by the Transferee Company.

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